Frederick R. Yarger argued the cause for respondent Wilson C. Choy, M.D. With him on the brief were *Michael L. O'Donnell*, *Kevin D. Homiak*, *William P. Sowers*, *Rebecca Graves Payne*, *John A. Elzufon*, and *Nathan V. Gin*. *Sarah E. Harrington* filed a brief for respondent Beebe Medical Center, Inc. With her on the brief were *David M. Zionts*, *Kendall T. Burchard*, and *John J. Hare*.*

JUSTICE BARRETT delivered the opinion of the Court.

The cost of malpractice insurance for doctors and hospitals has significantly increased in some areas of the country. In response, several States have imposed a screening mechanism on malpractice suits, requiring plaintiffs to submit an affidavit from a medical professional attesting to the suit's

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*Briefs of *amici curiae* urging reversal were filed for the American Association for Justice by *Robert S. Peck* and *Jeffrey R. White*; for Civil Procedure Professors by *Alan B. Morrison*; for Public Justice by *John J. Korzen* and *Leah M. Nicholls*; and for the Hon. Mark W. Bennett et al. by *D. Chanslor Gallenstein*.

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Briefs of *amici curiae* urging affirmance were filed for the State of Tennessee et al. by *Jonathan Skrmetti*, Attorney General of Tennessee, *J. Matthew Rice*, Solicitor General, and *Harrison Gray Kilgore*, Senior Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Tim Griffin* of Arkansas, *Philip J. Weiser* of Colorado, *James Uthmeier* of Florida, *Chris Carr* of Georgia, *Raúl Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Keith Ellison* of Minnesota, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Michael T. Hilgers* of Nebraska, *Matthew J. Platkin* of New Jersey, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *David W. Sunday, Jr.*, of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Ken Paxton* of Texas, *Derek Brown* of Utah, *Charity R. Clark* of Vermont, *Jason Miyares* of Virginia, and *John B. McCuskey* of West Virginia; for the American Hospital Association et al. by *Colleen E. Roh Sinzdak*; for the American Medical Association et al. by *Jack R. Bierig*; for the DRI Center for Law and Public Policy by *Hillary A. Taylor*; for Insurance Companies et al. by *Kendra N. Beckwith* and *Michael D. Miller*; and for Michael T. Morley by *Richard A. Simpson* and *F. Andrew Hessick*.

merit. We consider whether Delaware's affidavit requirement applies in federal court and hold that it does not.

I

While on a trip to Delaware, Harold Berk fell out of bed. According to his complaint, he was taken by ambulance to a hospital owned by Beebe Medical Center, Inc., where an X ray revealed a fractured ankle. Dr. Wilson Choy recommended that Berk be fitted with a protective boot.

The fitting did not go well. Hospital employees forced Berk's leg into the boot, twisting his fractured ankle. Still, Dr. Choy did not immediately order another X ray; he told Berk to keep weight off his ankle, proposed a follow-up appointment in two weeks, and sent Berk on his way. At the follow-up, Berk got a second X ray, which showed that his ankle was not just fractured but also severely deformed, requiring surgery.

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Berk sued Beebe Medical Center and Dr. Choy (whom we will call defendants) for medical malpractice under Delaware law. Because Berk and defendants are citizens of different States, Berk could sue in federal court based on diversity jurisdiction.

Under Delaware law, a plaintiff may not sue for medical malpractice unless an affidavit of merit "accompanie[s]" the complaint. Del. Code, Tit. 18, § 6853(a)(1) (2025). The affidavit must be signed by a medical professional, § 6853(c), and it must state that there are "reasonable grounds to believe that there has been health-care medical negligence committed by each defendant," § 6853(a)(1). A plaintiff with "good cause" may secure a single 60-day extension of time in which to file the affidavit, *ibid.*, but he must file the extension motion before or when he files the complaint, § 6853(a)(2). If an affidavit does not accompany the complaint and the plaintiff has not filed a timely extension motion, then the clerk of court shall "refuse to file the complaint and it shall not be docketed." § 6853(a)(1). The defendants need not take any action with respect to the complaint until 20 days after the

affidavit of merit is filed. § 6853(a)(4). Upon the defendants' motion, the court must determine *in camera* if the affidavit satisfies the statutory requirements. § 6853(d).

Attempting to comply with § 6853, Berk immediately moved for an extension of time to file an affidavit. The District Court granted Berk's motion, and Berk tried to track down a doctor willing to provide an affidavit (an ordeal spawning separate litigation). But the clock ran out, and coming up empty-handed, Berk instead filed his medical records under seal. Defendants moved the District Court to review Berk's submissions *in camera* to determine whether they complied with § 6853. Berk countered that § 6853 is not enforceable in federal court because it is displaced by the Federal Rules of Civil Procedure. The District Court disagreed with Berk and dismissed his lawsuit for failure to comply with Delaware's affidavit law. See 2023 WL 2770573, *1–*2 (D Del., Apr. 4, 2023).

The Third Circuit affirmed, holding that § 6853 applies in federal court. See 2024 WL 3534482, *4 (July 25, 2024). The court concluded that the Federal Rules of Civil Procedure are silent as to whether an affidavit must accompany the complaint. *Id.*, at *2–*3. Where the Federal Rules are silent, state law applies if it is substantive. See *Erie R. Co.* v. *Tompkins*, 304 U. S. 64, 78 (1938). A state law is substantive if (1) it is outcome determinative, and (2) failing to apply it in federal court would promote forum shopping and the inequitable administration of the law. See *Hanna* v. *Plumer*, 380 U. S. 460, 467–469 (1965). After applying this test, the Third Circuit concluded that § 6853 is substantive and affirmed the dismissal of Berk's suit. See 2024 WL 3534482, *3–*4.

We granted certiorari. 604 U. S. 1193 (2025).

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II

State-law claims are usually brought in state court. But if the parties are citizens of different States and the amount in controversy exceeds a certain threshold, a plaintiff may

choose to sue in federal court. 28 U. S. C. § 1332. In that event, the federal court faces a choice-of-law problem: whether to apply state or federal law. The Rules of Decision Act directs federal courts to apply state substantive law, leaving federal law to cover the rest. § 1652. Following that direction is harder than it looks, because determining whether a state law is substantive requires a court to enter "*Erie*'s murky waters." *Shady Grove Orthopedic Associates, P. A.* v. *Allstate Ins. Co.*, 559 U. S. 393, 398 (2010).

Yet when a Federal Rule of Civil Procedure is on point, a federal court bypasses *Erie*'s inquiry altogether. That is because the Rules of Decision Act dictates that state substantive law must yield if the Constitution, a treaty, or a statute "otherwise require[s] or provide[s]." § 1652. And the Rules Enabling Act, which authorizes the Supreme Court to adopt uniform rules of procedure for district courts, provides for the application of federal law. § 2072(a); see also Fed. Rule Civ. Proc. 1 ("These rules govern the procedure in all civil actions and proceedings in the United States district courts . . . "). Thus, a valid Rule of Civil Procedure displaces contrary state law even if the state law would qualify as substantive under *Erie*'s test. See *Hanna*, 380 U. S., at 469–474.

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Analyzing whether a Federal Rule displaces state law is straightforward. We first ask whether the Federal Rule "answers the question in dispute." *Shady Grove*, 559 U. S., at 398. In doing so, we interpret the Federal Rules the same way we interpret federal laws more generally: by giving them their "plain meaning." *Walker* v. *Armco Steel Corp.*, 446 U. S. 740, 750, n. 9 (1980). If a Federal Rule answers the disputed question, it governs, unless it "exceeds statutory authorization or Congress's rulemaking power." *Shady Grove*, 559 U. S., at 398.

A

In this case, the disputed question is whether Berk's lawsuit may be dismissed because his complaint was not accom-

panied by an expert affidavit.[1] Rule 8 gives the answer. It prescribes the information a plaintiff must present about the merits of his claim at the outset of litigation: "a short and plain statement of the claim showing that [he] is entitled to relief." Fed. Rule Civ. Proc. 8(a)(2). By requiring no more than a statement of the claim, Rule 8 establishes "implicitly, but with unmistakable clarity," *Hanna*, 380 U. S., at 470, that evidence of the claim is *not* required. Cf. *Burlington Northern R. Co.* v. *Woods*, 480 U. S. 1, 7–8 (1987) (declining to apply a state statute where a Federal Rule "occupies the statute's field of operation").

Rule 12 reinforces the point. It provides only one ground for dismissal based on the merits: "failure to state a claim upon which relief can be granted." Fed. Rule Civ. Proc. 12(b)(6). When evaluating whether a plaintiff has stated a claim, the court cannot consider "matters outside the pleadings." Rule 12(d). The court instead asks only whether the complaint's factual allegations, if taken as true, "state a claim to relief that is plausible on its face." *Bell Atlantic Corp.* v. *Twombly*, 550 U. S. 544, 570 (2007). A complaint that satisfies this standard is "well-pleaded" and "may proceed even if it strikes a savvy judge that actual proof of the facts alleged is improbable." *Id.*, at 556.

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[1] The concurrence objects to our framing the disputed question around dismissal because doing so "assumes that Berk's lawsuit has already been . . . filed and docketed." *Post*, at 202 (JACKSON, J., concurring in judgment). But Berk's lawsuit *has* already been filed and docketed, see No. 1:22–cv–01506 (D Del., Nov. 18, 2022), ECF Doc. 1, which is how it found its way here. The only question in dispute is whether Berk's lawsuit may be dismissed—indeed, that is the question on which we granted certiorari. See Pet. for Cert. i. The concurrence reframes the question in dispute as "what is required to start a medical malpractice case." *Post*, at 203. But because no one argues that the court violated § 6853 by docketing Berk's complaint, the concurrence is ultimately forced to grapple with the question whether Berk's lawsuit may be "dismiss[ed]." *Post*, at 209. By focusing on dismissal from the start, we do not "jum[p] the gun," *post*, at 202, but rather cut to the chase.

By design, this system of pleading makes it relatively easy for plaintiffs to subject defendants to discovery—even for claims that are likely to fail. To protect defendants from this burden, lower federal courts have sometimes tried to require more information for certain kinds of claims: 42 U. S. C. § 1983 actions against municipalities, *Leatherman* v. *Tarrant County Narcotics Intelligence and Coordination Unit*, 507 U. S. 163 (1993); employment discrimination suits, *Swierkiewicz* v. *Sorema N. A.*, 534 U. S. 506 (2002); and prisoner suits, *Jones* v. *Bock*, 549 U. S. 199 (2007). We have consistently rejected such efforts. As we explained in *Leatherman*—which dealt with a demand that plaintiffs plead certain § 1983 claims with added specificity—Rule 8(a)(2) requires "only" a "'short and plain statement of the claim.'" 507 U. S., at 165, 168 (quoting Rule 8(a)(2)). Unless the Federal Rules single out a claim for special treatment, see, *e. g.*, Fed. Rule Civ. Proc. 9, Rule 8 sets a ceiling on the information that plaintiffs can be required to provide about the merits of their claims.

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Delaware's affidavit requirement is at odds with Rule 8 because it demands more: A medical malpractice suit cannot proceed "unless the complaint is accompanied by . . . [a]n affidavit of merit." § 6853(a)(1). Under Rule 8, factual allegations are sufficient, but under the Delaware law, the plaintiff needs evidence too. See *Dishmon* v. *Fucci*, 32 A. 3d 338, 344 (Del. 2011) (describing § 6853 as imposing a "*prima facie* evidentiary requiremen[t]"); see also Brief for Respondent Beebe 23 (same). The two rules thus give different answers to the question whether Berk's complaint can be dismissed as insufficient because it was unaccompanied by an affidavit.

It is true, as defendants and the concurrence are quick to point out, that an affidavit of merit is a document separate from the "pleading," and that, by its literal terms, Rule 8 defines only what the "pleading . . . must contain." But we think it is fair to infer that by specifying what information about the merits is required in the "pleading," Rule 8 ex-

cludes the possibility of requiring even more information on the same topic—whether in the "pleading" itself or on a separate sheet of paper attached to it. Cf. *Jones*, 549 U. S., at 205, 212–217 (rejecting requirement that prisoners "attach proof of exhaustion . . . to their complaints" as inconsistent with Rule 8). Rule 8 addresses what information a plaintiff must provide about the merits of his claim at the outset of litigation. Section 6853 addresses the same issue—and in doing so, imposes a different standard.[2]

Resisting this conclusion, defendants cite *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949), for the broad proposition that all state "preconditions to proceeding" are consistent with the Federal Rules. Brief for Respondent Beebe 26–27; see Brief for Respondent Choy 20–21. They substantially overread *Cohen*. There, a state law rendered an unsuccessful plaintiff in a shareholder derivative suit liable for all the defendant's expenses, including attorney's fees, and as security for that potential liability, required the plaintiff to post a bond before proceeding with the action. 337 U. S., at 543. The plaintiffs argued that the bond requirement was displaced by then-Rule 23, which governed shareholder derivative suits in federal court. *Id.*, at 556.

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[2] The concurrence accuses us—and the "many Courts of Appeals" that agree with us—of "contorting" Rule 8 by reading it to implicitly preclude courts from requiring plaintiffs to provide additional information. *Post*, at 208, and n. 6. Yet drawing a negative inference from text is sometimes the best way to understand it. See A. Scalia & B. Garner, Reading Law: The Interpretation of Legal Texts 107–111 (2012) (negative-implication canon). And while the concurrence criticizes the negative inference we draw as "inattentively capacious," *post*, at 206, its Rule 3 analysis depends on an analogous inference. Rule 3 establishes what happens once a complaint is filed: "A civil action is commenced by filing a complaint with the court." Fed. Rule Civ. Proc. 3. Section 6853, meanwhile, establishes what is required "to file the complaint . . . with the court": an affidavit of merit or an extension motion. §6853(a)(1). The concurrence finds a collision only by reading Rule 3 to implicitly foreclose any precondition to filing the complaint. So if a negative inference is a "contortion," the concurrence's argument fails by its own measure.

Cohen held that there was no conflict because the state law and Rule 23 addressed different issues: The state law created a liability, while Rule 23 dealt with "disclosure to the court and notice to the parties in interest." *Id.*, at 555–556.

Cohen thus did not identify and exempt a broad category of so-called preconditions to proceeding from conflict with the Federal Rules. It held that a particular state law addressed a matter that was unaddressed by the relevant Federal Rule. Here, by contrast, the state law and the Federal Rule address the same issue: the information that a plaintiff must provide about the merits of his claim at the outset of litigation. Describing the affidavit requirement as a "preconditio[n] to proceeding" does not magically dispel the conflict.

Defendants offer a workaround: They rewrite Delaware's law. While § 6853 provides that an affidavit must "accompan[y]" the complaint, defendants suggest that the district court can simply require it "early in [a] case." Brief for Respondent Beebe 13; see also Brief for Respondent Choy 36 (suggesting affidavit can be filed "weeks" or "months" after the complaint). This proposal is inspired by § 6853's allowance for an extension of time in which to file the affidavit. But defendants treat this exception—which is available only "for good cause shown"—as the rule and rework the exception to boot. In federal court, apparently, an extension motion need not precede or accompany the complaint; nor is the district court limited to granting one 60-day extension. See, *e. g.*, Brief for Respondent Beebe 23–25. And defendants' proposed changes do not stop there: They would also have us delete the provision that absolves a defendant from "tak-[ing] any action with respect to the complaint" until the affidavit is filed. § 6853(a)(4). Under Federal Rule 12(a)(1), service of the summons and complaint triggers a defendant's obligation to respond, and defendants admit that the Federal Rule controls on this point.

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After defendants' edits, the Delaware law is no longer a pleading requirement that serves a gatekeeping function; it is a free-floating evidentiary requirement that can serve as the basis for an early dismissal. Yet even were it acceptable to take creative license with the Delaware law, there would be no way to enforce such a requirement. Defendants concede that the absence of an affidavit is not grounds for dismissal under Rule 12(b)(6). They float the possibility of dismissal for failure to prosecute, but that does not work because Berk actively participated in the litigation. Defendants' first choice is the course the District Court took here: dismissal based on the court's inherent authority. The problem, however, is that the Federal Rules already prescribe a mechanism for putting a plaintiff to his proof: a motion for summary judgment. See Fed. Rule Civ. Proc. 56. And that does not offer defendants the protection they want, because before ruling on the motion, the court must allow the nonmovant "adequate time for discovery." *Celotex Corp.* v. *Catrett*, 477 U. S. 317, 322 (1986); see also Rule 12(d) (requiring a "reasonable opportunity to present all the [pertinent] material" if motion to dismiss is converted to motion for summary judgment). That defendants cannot fit the affidavit requirement into the Federal Rules illustrates that it has no place there.

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Perhaps recognizing this, defendants devote most of their energy to arguing that the Federal Rules contain a loophole. According to defendants, a proviso tucked into Rule 11 makes state affidavit laws applicable in federal court even if they conflict with other Federal Rules. Rule 11 provides that "[u]nless a rule or statute specifically states otherwise, a pleading need not be verified or accompanied by an affidavit." Fed. Rule Civ. Proc. 11(a). Defendants argue that § 6853 is a "statute [that] specifically states otherwise," *ibid.*, and it therefore applies in federal court regardless of whether it conflicts with other Federal Rules.

Even if Rule 11 incorporates some state affidavit laws, it does not incorporate this one. Rule 11 governs the conduct of those who practice before courts: the "attorney of record" or the "party personally if the party is unrepresented." *Ibid.* It requires the attorney or *pro se* party to certify, after "reasonable" inquiry, that the legal and factual representations made to the court are warranted. Rule 11(b). The sentence on which defendants rely simply "acknowledges" that although Rule 11 generally puts the onus on the attorney or *pro se* party to vouch for representations, "in some situations *represented parties* are required by rule or statute to verify pleadings or sign affidavits." *Business Guides, Inc.* v. *Chromatic Communications Enterprises, Inc.*, 498 U. S. 533, 542 (1991) (emphasis added); see, *e. g.*, Fed. Rule Civ. Proc. 23.1 (requiring complaints in shareholder derivative actions to be verified). The sentence has nothing to do with affidavits from third parties. Accordingly, Rule 11 does not shield Delaware's law from displacement by Rule 8.

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B

Because Rule 8 and § 6853 answer the same question, Rule 8 governs so long as it is valid under the Rules Enabling Act, which requires that Federal Rules be procedural rather than substantive. 28 U. S. C. § 2072(b) ("Such rules shall not abridge, enlarge or modify any substantive right"). The line between substance and procedure is hazy, and we draw it differently in different contexts. See *Hanna*, 380 U. S., at 471 ("The line between 'substance' and 'procedure' shifts as the legal context changes"). For purposes of the Rules Enabling Act, we use a modest test: whether the Federal Rule "really regulates procedure." *Sibbach* v. *Wilson & Co.*, 312 U. S. 1, 14 (1941). Or put differently, "[w]hat matters is what the Rule itself *regulates*: If it governs only 'the manner and the means' by which the litigants' rights are 'enforced,' it is valid." *Shady Grove*, 559 U. S., at 407 (plurality opinion)

(quoting *Mississippi Publishing Corp.* v. *Murphree*, 326 U. S. 438, 446 (1946)).

In applying this analysis, we have "rejected every statutory challenge to a Federal Rule that has come before us." *Shady Grove*, 559 U. S., at 407 (plurality opinion). We have upheld Rules governing the certification of class actions, *id.*, at 408 (Rule 23); see *id.*, at 416, 436 (Stevens, J., concurring in part and concurring in judgment) (Rule 23); service of process, *Mississippi Publishing Corp.*, 326 U. S., at 445–446 (Rule 4(f)); compelled mental and physical examinations, *Sibbach*, 312 U. S., at 14–16 (Rule 35); sanctions for frivolous appeals, *Burlington*, 480 U. S., at 8 (Rule 38); and sanctions for signing court papers without reasonably investigating the facts asserted, *Business Guides*, 498 U. S., at 551–554 (Rule 11).

Like those Rules, Rule 8 "really regulates procedure." *Sibbach*, 312 U. S., at 14. It determines what plaintiffs must present to the court about their claims at the outset of litigation. Although the Rule may have some "practical effect on the parties' rights," it regulates "only the process for enforcing those rights," not "the rights themselves, the available remedies, or the rules of decision." *Shady Grove*, 559 U. S., at 407–408 (plurality opinion).

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Defendants do not contend otherwise. Instead, they argue that determining whether a Rule is valid under the Rules Enabling Act requires asking a second question: whether *the displaced state law* is substantive. We rejected that approach eight decades ago and decline to reconsider it now. See *Sibbach*, 312 U. S., at 14. On the contrary, we underscore that "the substantive nature of [a state] law, or its substantive purpose, *makes no difference*." *Shady Grove*, 559 U. S., at 409 (plurality opinion). To determine whether a Rule is valid under the Rules Enabling Act, the only question is whether it "really regulates procedure." *Sibbach*, 312 U. S., at 14. Rule 8 does, so it governs, and Delaware's affidavit law does not apply in federal court.

* * *

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE JACKSON, concurring in the judgment.

I agree with the Court that Delaware's affidavit requirement cannot apply in federal court. I write separately because, in my view, the relevant conflicts are with Federal Rules of Civil Procedure 3 and 12, not Rule 8.

I

As the majority explains, Delaware's law is, at bottom, an "affidavit requirement." *Ante*, at 190. If a medical malpractice plaintiff wants her complaint deemed "filed" and her case docketed, the statute mandates that an affidavit of merit signed by a medical professional (or a motion for an extension of time to file the affidavit) must accompany the complaint. See Del. Code, Tit. 18, § 6853(a)(1) (2025). By contrast, the Federal Rules require no such additional filing. Rather, "[a] civil action is commenced by filing a complaint with the court." Fed. Rule Civ. Proc. 3.

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Thus, § 6853 and Rule 3 conflict regarding the requirements to "commence" a medical malpractice action. If a federal court were to follow Delaware's law, a plaintiff would have to do more than merely tender the complaint in order for his medical malpractice lawsuit to be filed and docketed. But, under the language of Rule 3, civil suits commence as soon as the complaint—and only the complaint—has been filed by the plaintiff. In my view, this clash warrants reversal here.

As the majority explains, our cases make clear beyond cavil that "a valid [Federal] Rule of Civil Procedure displaces contrary state law." *Ante*, at 192. Thus, the nub of the conflict inquiry is to determine whether the State's requirement